

Child Safety and Wellbeing Recordkeeping Policy



Good Shepherd Primary School is a school which operates with the consent of the Catholic Archbishop of Melbourne and is owned, operated and governed by Melbourne Archdiocese Catholic Schools Ltd (MACS).

Purpose

The purpose of this policy is to ensure that all Good Shepherd Primary School records relating to Child Safety and Wellbeing are created, maintained and disposed of in accordance with Public Record Office Victoria Recordkeeping Standards, including minimum retention periods.

This policy takes into account relevant requirements within the State of Victoria, including the specific requirements of the Child Safe Standards as set out in Ministerial Order No. 1359 and the Public Record Office of Victoria Recordkeeping Standards (to the extent that they apply to Good Shepherd Primary School).

Scope

This policy applies to all MACS school staff, contractors, volunteers and clergy. It should be read in conjunction with related school policies and codes of conduct, including:

1. Child Safety Code of Conduct
2. Child Safety and Wellbeing Policy
3. Complaints Handling Policy

Definitions

Child

A child or young person who is under the age of 18 years.

Child abuse

Child abuse includes:

- (a) any act committed against a Child involving:
 - (i) a sexual offence
 - (ii) an offence under section 49B(2) of the *Crimes Act 1958* (grooming)
- (b) the infliction, on a Child, of:
 - (i) physical violence
 - (ii) serious emotional or psychological harm
- (c) serious neglect of a Child.

Child-connected work

Work that involves direct contact with children that is regular and not incidental to the work.

Child safety

Encompasses matters related to protecting all children from child abuse, managing the risk of child abuse, providing support to a child at risk of child abuse, and responding to suspicions, incidents, disclosures or allegations of child abuse ([Ministerial Order No. 1359](#)).

Child Safety and Wellbeing Record

Any Record that involves or relates to matters concerning Child safety or which involves or relates to matters involving the safety or wellbeing of a Child, which may include Records relating to:

- concerns or complaints relating to child safety or the safety or wellbeing of a child
- safety incidents involving a child
- Mandatory reporting
- Reportable allegations
- Reportable conduct
- other matters relating to child safety or the safety or wellbeing of a child.

Mandatory reporting

Is the legal requirement under the *Children, Youth and Families Act 2005* (Vic.) to protect children from harm relating to physical and sexual abuse. The Principal, registered teachers and early childhood teachers, school counsellors, religious clergy, medical practitioners and nurses at a school are mandatory reporters under this Act ([PROTECT: Identifying and responding to all forms of abuse in Victorian schools](#)).

MACS school

A school which operates with the consent of the Catholic Archbishop of Melbourne and is owned, operated and governed by MACS, directly or through MACSS (as the context requires), where formation and education are based on the principles of Catholic doctrine, and where the teachers are outstanding in true doctrine and uprightness of life. References to schools or MACS schools also includes boarding premises of schools operated by MACS and specialist schools operated by Melbourne Archdiocese Catholic Special Schools Ltd (MACSS).

Record

This means all information that the school creates, sends or receives, that provides evidence of decisions, directions and school activities. Records may be in any format (whether formal or informal), including digital or physical format, and may include documents, email correspondence, financial statements, text messages, meeting notes, audio-visual recordings, photographs, website pages and social media posts.

Reportable allegation

Any information that leads a person to form a reasonable belief that an employee has committed either:

- reportable conduct
- misconduct that may involve reportable conduct

whether or not the conduct or misconduct is alleged to have occurred within the course of the person's employment (as defined in the *Child Wellbeing and Safety Act 2005* (Vic)).

Reportable conduct

Reportable conduct, as defined in the *Child Wellbeing and Safety Act 2005* (Vic) means:

- a sexual offence committed against, with or in the presence of a child, whether or not a criminal proceeding in relation to the offence has been commenced or concluded
- sexual misconduct committed against, with or in the presence of a child
- physical violence committed against, with or in the presence of a child
- any behaviour that causes significant emotional or psychological harm to a child
- significant neglect of a child.

School environment

This means any of the following physical, online or virtual places used during or outside school hours:

- a campus of the school
 - online or virtual school environments made available or authorised by Good Shepherd Primary School for use by a child or student (including email, intranet systems, software, applications, collaboration tools and online services)
- other locations provided by the school or through a third-party provider for a child or student to use including, but not limited to, locations used for school camps, approved homestay accommodation, delivery of education and training, sporting events, excursions, competitions and other events) ([Ministerial Order No. 1359](#)).

School staff

An individual working in a school environment who is:

- directly engaged or employed by a school governing authority
- a contracted service provider engaged by MACS (whether or not a body corporate and whether or not any other person is an intermediary) engaged to perform child-related work for Good Shepherd Primary School;
- a minister of religion, a religious leader or an employee or officer of a religious body associated with MACS ([Ministerial Order No. 1359](#)).

Volunteer

A person who performs work without remuneration or reward for Good Shepherd Primary School in the school environment.

Principles

At Good Shepherd Primary School we are committed to ensuring that we have good recordkeeping processes in place, particularly with respect to Child Safety and Wellbeing Records. We recognise that good recordkeeping helps to:

- protect the rights of students, school staff, volunteers and the school community
- support collaboration and informed decision-making
- ensure transparency and accountability by providing proof of school practices, communications, decisions and actions
- support continuity and consistency in management and administration
- provide an audit trail to meet operational and legal requirements
- reduce the risk of being unable to produce evidence of school activities.

Policy

Good Shepherd Primary School will ensure that:

- Full and accurate records of school activities and decisions relating to Child Safety and Wellbeing are created and kept to meet legislative requirements and community needs.
- Child Safety and Wellbeing Records are organised so they can be readily accessed and used for authorised purposes.

- Systems and processes are developed to ensure Child Safety and Wellbeing Records are kept secure from unauthorised access, amendment, use, release and disposal.
- Child Safety and Wellbeing Records are stored in secure physical locations and systems that will protect them from misuse, damage, deterioration or loss.
- Child Safety and Wellbeing Records are preserved in a readable and accessible format for their minimum required retention period.
- School staff and volunteers seek written authorisation from the Director of Governance and Strategy prior to disposing of Child Safety and Wellbeing Records.
- School staff and volunteers do not dispose of any Child Safety and Wellbeing Records that are likely to be required in a legal proceeding.
- The method used to dispose of Child Safety and Wellbeing Records is secure and permanent.
- A register of Child Safety and Wellbeing Records disposal is kept.

Child Safety and Wellbeing Recordkeeping procedures set out more detailed guidance for processes that Good Shepherd Primary School has in place to ensure that it meets the Public Record Office Victoria Recordkeeping Standards in relation to the creation, maintenance and disposal of Child Safety and Wellbeing Records.

Relevant legislation

- *Education and Training Reform Act 2006* (Vic.)
- *Public Records Act 1973* (Vic)

Related Policies

- Child Safety Code of Conduct
- Child Safety and Wellbeing Policy
- Complaints Handling Policy

References

- *Ministerial Order No. 1359: Implementing the Child Safe Standards – Managing the Risk of Child Abuse in Schools and School Boarding Premises*
- [Public Record Office Victoria Recordkeeping Standards](#)

Policy information

Responsible director	Director, Learning and Regional Services
Policy owner	General Manager, Legal and Professional Standards
Approving body/individual	MACS Executive Director
Risk Rating	High
Approval date	14 September 2022
Date of next review	April 2023
POLICY DATABASE INFORMATION	
Assigned Framework	Child Safety
Assigned board committee	MACS Child Safety and Risk Management Board Committee
Related documents	Child Safety and Wellbeing Recordkeeping Procedures
Superseded documents	
New policy	New